SAI DARBAR MOTAR TRAINING SCHOOL

Traffic Rules and Road Safety Regulations

Version 1.0 | Updated November 2026 | Audience: Learners, students and staff

Government-authorised (RTO-recognised) motor driving school, working since 2012-13.

Dnyaneswar Nagar, near Kamgar Hospital, Wagle Estate, Thane - 400604, Maharashtra | Phone / WhatsApp: 8677097777 | Email: guruzirpe@gmail.com

About this document

This guide summarises the main traffic rules in India that every learner and driver must know. It is based on official government sources: the Motor Vehicles Act, 1988 as amended by the Motor Vehicles (Amendment) Act, 2019 (Ministry of Road Transport and Highways, PIB), the Central Motor Vehicles Rules, 1989 (including the Rules of the Road Regulations, 1989), and the Parivahan portal. The law itself always prevails. State governments can notify their own compounding amounts, so for the exact challan amount in Maharashtra check the Maharashtra Traffic Police or the e-challan portal (echallan.parivahan.gov.in).

1. Who makes and enforces the rules

- **Motor Vehicles Act, 1988** (amended 2019): the main law on licensing, registration, insurance, offences and penalties.
- **Central Motor Vehicles Rules, 1989** and the **Maharashtra Motor Vehicles Rules**: detailed rules on licensing, driving schools, signals, vehicle standards and safety devices.
- **Rules of the Road Regulations, 1989** (made under section 118 of the Act): keep left, overtaking, junctions, signals, parking, horns and speed.
- **RTO (Regional Transport Office)**: licences, registration, fitness, permits and driving tests.
- **Traffic Police**: on-road enforcement, challans and accident reporting.

2. Documents you must carry

Document	Who needs it	Note
Driving licence (or valid learner licence)	Every driver or rider	A learner must be accompanied by a person holding a valid licence for that vehicle class.
Registration certificate (RC)	Every motor vehicle	In the name of the owner; keep a copy or digital copy.
Valid insurance (at least third-party)	Every motor vehicle	Driving without insurance is an offence.
PUC (pollution under control) certificate	Every motor vehicle	Must be valid; new vehicles have an initial exemption period.
Fitness certificate and permit	Commercial / transport vehicles	Required in addition to the above.

Digital copies of documents shown through **DigiLocker** or the **mParivahan** app are accepted by the authorities.

3. Basic rules of driving

3.1 Road discipline

- Drive on the **left side** of the road. Keep to your lane and do not change lanes without need.

- Use mirrors, then the indicator, before turning, changing lanes, overtaking or stopping. Cancel the indicator after the manoeuvre.
- Keep a safe following distance. A simple method is the **3-second rule**: pick a fixed point, and make sure you pass it at least 3 seconds after the vehicle ahead. Increase the gap in rain, fog or at night.
- Obey the **speed limit** shown on signboards. Limits differ by road, vehicle type and zone. Slow down near schools, hospitals, markets, junctions and bends.
- Do not drive a vehicle that is unsafe: check brakes, tyres, lights, indicators, horn and mirrors before starting.

3.2 Overtaking

- Overtake only from the right, and only when the road ahead is clear and you can complete it safely.
- Do not overtake at bends, hill crests, bridges, junctions, pedestrian crossings or where a continuous centre line or a 'No Overtaking' sign is shown.
- If a vehicle behind you signals to overtake and it is safe, let it pass. Do not speed up.

3.3 Junctions, signals and right of way

Signal / situation	What to do
Red light	Stop behind the stop line. Do not cross it until the light turns green.
Amber (yellow) light	Prepare to stop. Stop if you can do so safely; do not accelerate to beat the light.
Green light	Go only when the junction ahead is clear. Give way to pedestrians still crossing.
Flashing red / flashing amber	Flashing red: stop, then proceed when it is safe. Flashing amber: slow down and proceed with caution.
Traffic police at a junction	Follow the police officer's signals even if they differ from the light.
Roundabout	Give way to traffic already on the roundabout. Keep left and indicate when leaving.
Uncontrolled junction	Slow down, look both ways, and give way to traffic on the main road and to vehicles already in the junction.
Zebra crossing	Stop and let pedestrians cross. Never stop on the crossing itself.
Emergency vehicles	Give way immediately to an ambulance, fire engine or police vehicle sounding a siren: slow down and pull to the left.

4. Road signs and markings

Road signs are in three groups. For the learner licence test, recognise each group by its shape and colour.

Group	Shape and colour	Meaning	Examples
Mandatory (regulatory)	Mostly circular with a red border	Must be obeyed. Breaking them is an offence.	Stop (octagon), Give Way (inverted triangle), No Entry, No Parking, Speed Limit, No Overtaking, No Horn
Cautionary (warning)	Triangular with a red border	Warns of danger or a change in the road ahead.	Sharp bend, Slippery road, School ahead, Pedestrian crossing, Narrow bridge, Cattle crossing
Informatory	Mostly rectangular, blue or green	Gives information and directions.	Parking, Hospital, Petrol pump, First aid, Direction and place signs

Road markings

- Continuous centre line: do not cross it or overtake across it.
- Broken (dashed) line: you may cross to overtake when it is safe.
- Stop line: stop behind it at signals and stop signs.
- Zebra crossing: pedestrians have priority.
- Yellow or painted kerb marks: follow the parking and stopping restrictions shown.

5. Safety rules

Rule	Details
Seat belt	The driver and passengers should wear seat belts in cars. Enforcement for rear seats is active in many cities.
Helmet	Rider and pillion on a two-wheeler must wear a properly fastened, BIS-certified helmet.
Children on two-wheelers	A child below 4 years on a motorcycle must wear a safety harness (attached to the rider) and a crash helmet, and the motorcycle speed must not exceed 40 km/h. (MoRTH notification of 15 February 2022 amending Rule 138 CMVR; in force from 15 February 2023.)
Mobile phone	Do not hold or use a phone while driving. Using a hand-held device is treated as dangerous driving (Section 184).
Drink and drive	The legal limit is 30 mg of alcohol per 100 ml of blood. Never drive after drinking or using drugs.
Overloading	No triple riding on two-wheelers. Do not carry more passengers or load than the vehicle is permitted.
Minors	A person below 18 must not drive a motor vehicle in a public place (Section 4); a motorcycle up to 50 cc may be driven from age 16. The guardian or owner is punished under Section 199A, and the juvenile cannot get a driving licence or learner licence until the age of 25.
Tiredness	Do not drive when sleepy. Take a break every 2 hours on long trips.

6. Parking

- Park only where parking is allowed and within the lines or marked areas.
- Do not park at or near junctions, zebra crossings, bus stops, hospital or fire-station entrances, on bridges, or on a slope without the handbrake and a gear engaged.
- Do not block a driveway, a footpath, or another vehicle. Vehicles may be towed and fined.
- Before opening a door, check mirrors and look behind for two-wheelers and pedestrians.

7. Night, rain and fog driving

- Use dipped headlights at night and when oncoming vehicles approach. Do not use high beam on oncoming traffic.
- In rain, slow down, increase the gap, brake gently and keep wipers and demisters working. Avoid flooded roads.
- In fog, use low beam or fog lamps, reduce speed, and follow the road edge markings.
- Hazard lights are for a stationary or broken-down vehicle, not for normal driving.

8. Accident and emergency procedure

1. Stop immediately. Switch off the engine, switch on hazard lights and place a warning triangle behind the vehicle if available.
2. Check for injuries. Call **112** (national emergency number) or **108** (ambulance) for serious injuries.
3. Do not move a seriously injured person unless there is a danger such as fire. Give basic first aid only if you are trained.
4. Take the injured person to the nearest hospital if required. Report the accident to the nearest police station.
5. Note the vehicle numbers, take photos, and exchange insurance details. Inform your insurance company promptly.
6. Under the law, a Good Samaritan who helps an accident victim is protected from civil and criminal liability, and cannot be forced to give personal details or stay at the hospital.

9. Learner licence holder rules

- A learner must always be accompanied by an instructor or person holding an effective driving licence for that class of vehicle, sitting in a position from which they can control or stop the vehicle (CMVR rule 3).
- The red letter **'L' on a white background** must be displayed at the front and rear of the vehicle, on a plate not less than 18 cm square, with the letter at least 10 cm high, 2 cm thick and 9 cm wide at the bottom (CMVR rule 3).
- A learner on a motorcycle must not carry any other person except the instructor, as allowed by rule 3.
- Carry the learner licence at all times. A learner licence is valid for **6 months** from the date of issue (Section 14(1) of the Act).

10. Common offences and penalties

The table gives the penalties set by the Motor Vehicles Act, 1988 as amended in 2019 (provisions in force from 1 September 2019, as notified by MoRTH). Courts and enforcement officers may also suspend or impound the licence for serious offences.

Offence (Section)	Penalty (first offence)	Repeat offence / other consequences
Driving without a valid licence (S.181)	Fine up to Rs. 5,000	Vehicle may be detained.
Allowing an unlicensed person to drive (S.180)	Fine up to Rs. 5,000	Applies to the owner or person in charge.
Dangerous driving, including using a hand-held phone (S.184)	Imprisonment of 6 months to 1 year and/or fine of Rs. 1,000 to Rs. 5,000	Repeat: up to 2 years and/or fine up to Rs. 10,000. Licence can be suspended.
Drunk driving (S.185)	Up to 6 months in jail and/or fine up to Rs. 10,000	Repeat: up to 2 years and/or Rs. 15,000. Licence can be suspended.
Over-speeding (S.183)	Rs. 1,000 to Rs. 2,000 (light motor vehicle); Rs. 2,000 to Rs. 4,000 (medium passenger or goods vehicle)	Repeat: licence can be impounded.
Driving when mentally or physically unfit (S.186)	Fine up to Rs. 1,000	Repeat: up to Rs. 2,000.

Offence (Section)	Penalty (first offence)	Repeat offence / other consequences
Not wearing a helmet (S.194D)	Rs. 1,000	Licence disqualified for 3 months.
Overloading a two-wheeler (S.194C)	Rs. 2,000	Licence disqualified for 3 months.
Not wearing a seat belt (S.194B)	Rs. 1,000	None.
Not giving way to an emergency vehicle (S.194E)	Rs. 10,000	Community service may also apply.
Driving an uninsured vehicle (S.196)	Rs. 2,000 and/or up to 3 months in jail	Repeat: Rs. 4,000 and/or up to 3 months.
Obstructing the free flow of traffic (S.201)	Rs. 500	-
Driving by a minor (S.199A)	Guardian or owner: Rs. 25,000 and up to 3 years in jail	Vehicle registration cancelled for 12 months; the juvenile cannot get a licence until age 25.
Other offences with no specific penalty (S.177)	Rs. 500	Repeat: Rs. 1,500.

Local challan amounts

Under Section 200 a State can fix the amounts for compounding offences, under Section 210D a State can apply a multiplier, and Section 199B allows an annual increase of fines of up to 10%. The challan you receive in Maharashtra can therefore differ from the table. Check the latest amount with the Maharashtra Traffic Police or echallan.parivahan.gov.in.

11. Official sources

- Ministry of Road Transport and Highways (MoRTH): morth.gov.in (Motor Vehicles Act, Central Motor Vehicles Rules and notifications).
- Parivahan Sewa and Sarathi portals: parivahan.gov.in, sarathi.parivahan.gov.in, echallan.parivahan.gov.in.
- Press Information Bureau (PIB): summary of the Motor Vehicles (Amendment) Act, 2019 (pib.gov.in).
- Maharashtra Transport Department and Maharashtra Traffic Police for state notifications and challan amounts.

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